

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
PLACES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING
COUNTERFACTUAL — NEVER FILED OR ENTERED — DOES NOT
ALTER THE ACTUAL DISTRICT RECORD**

Counterfactual Mandate-Stay Denial

United States Court of Appeals for the Fourth Circuit Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. No. SYN-CA4-26-CV-4105-CF-NEVER-OCCURRED Entered July 29, 2026

Before Composite Jurist March, presiding, Composite Jurist Rowan, and Composite Jurist Slate. Granite Heron's July 27 motion to stay mandate is denied. Rule 41(d)(2)(A) requires a showing that a petition for certiorari would present a substantial question and that good cause supports a stay. The motion does not satisfy either requirement on this branch record.

Granite Heron prevailed on both components of the July 9 judgment and identifies no adverse ruling it intends to present to the Supreme Court. Its motion instead relied on the possibility that Blue Ember might petition. Blue Ember's July 28 response expressly disclaims that course and confirms that Granite Heron lacked authority to seek delay on its behalf. An abstract legal question untethered to a genuinely contemplated petition is insufficient.

Good cause is also absent. Granite Heron identifies only ordinary administration of an affirmed \$2,700,000 money judgment and offers no executed bond, noncompensable injury, or unusual enforcement consequence. General concern about payment, interest, or district proceedings does not justify withholding mandate when no petition will be filed.

This denial resolves only the timing motion. It does not revise the branch opinion, judgment, or two-component affirmance.

Mandate direction and isolation

The panel entered judgment July 9. The fourteen-day Rule 40 rehearing period expired July 23 without a petition, initially placing mandate on July 30. Because this timely stay motion is denied July 29, Rule 41(b)'s later-of provision would otherwise place mandate seven days after this order, on August 5. The Court expressly shortens that post-denial interval under Rule 41(b) and directs the clerk to release and issue mandate on July 30 unless a later order entered on this isolated docket directs otherwise.

The mandate will transmit affirmance of the mitigation JMOL and affirmance of the December 15, 2025 amended judgment. The conditional Rule 59 new-trial ruling remains dormant; denial of a stay does not activate it, affirm it, or create a remand. Liability and causation remain as stated in the counterfactual opinion.

This order relies only on the July 27 denial-path motion and July 28 denial-path response. It makes no finding about a different request supported by another party's certiorari plan, consent, or security. No such facts are before the panel here.

The order never was entered in an actual case. It does not alter the actual appellate disposition or either actual Rule 50(a) motion. Entered by direction of Composite Jurist March, Composite Jurist Rowan, and Composite Jurist Slate, with electronic notice to Maya Holt, Jonas Bell, Eli Mercer, and Tara Webb on July 29, 2026.